

## 26STCV17336 26STCV17336

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-18

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Case Number: 26STCV17336 Hearing Date: September 18, 2026 Dept: 732

Westlake Services v. Alejandro Chavez, et al.

Friday, September 18, 2026

CASE NUMBER: 26STCV17336

UNOPPOSED

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Defendant Alejandro Chavez's Motion to Set Aside Default

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Facts: This is an action for breach of contract. The Complaint alleges that Plaintiff Westlake Services, LLC ("Plaintiff") had a contract with Defendant Alejandro Chavez ("Defendant"), who failed to make all payments owed on the contract in the amount of \$84,221.02. (Complaint at p. 3.)

Procedural History: Plaintiff filed the Complaint on May 28, 2026, alleging two cause of action:

Breach of Contract

Common Counts

Defendant's default was entered on July 30, 2026.

Defendant filed the present motion to vacate default on August 4, 2026. No opposition has been filed.

Analysis

## MOTION TO VCATE DEFAULT

Code of Civil Procedure section 473, subdivision (b) states:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken . . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment . . . unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.

"The test of whether neglect was excusable is whether a reasonably prudent person under the same or similar circumstances' might have made the same error." (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1128, internal quotation marks omitted.)

Defendant Alejandro Chavez ("Defendant") moves to set aside default entered against him on July 30, 2026, on grounds of excusable neglect, arguing that he retained counsel before default was entered but was unable to file a responsive pleading before that time, and mere days thereafter sent messages to counsel for Plaintiff Westlake Services, LLC ("Plaintiff") seeking a stipulation to set aside the default and permit the filing of a proposed answer, which is now attached to the present motion. (Motion at pp. 4–5.)

Defendant has shown excusable neglect under the above statute, although the nature of the neglect demonstrated is different from that argued. Defendant states that no responsive pleading was filed in time to avoid the entry of default on July 15, 2026, and that Defendant's communications with Plaintiff's counsel took place from July 24 to August 4, 2026. (Chandler Decl. ¶¶ 7–11.) But the court's file indicates that no default was entered on July 15, only that a request for same was denied on that date. The default entered against Defendant was filed and entered on July 30, 2026 — while Defendant's counsel was corresponding with Plaintiff's counsel, seeking a stipulation to vacate a default that had not yet been entered. It does not appear that Plaintiff disabused Defendant of this belief, but instead filed a request for entry of default on July 30.

"[I]t is the policy of the law to favor, wherever possible, a hearing on the merits, and appellate courts are 'much more disposed to affirm an order when the result is to compel a trial upon the merits than it is when the judgment by default is allowed to stand, and it appears that a substantial defense could be made.'" (Thompson v. Sutton (1942) 50 Cal.App.2d 272, 276.) Given that the present motion promptly followed entry of default, no prejudice will evidently result from granting the motion. "When the moving party promptly seeks relief and there is no prejudice to the opposing party, very slight evidence is required to justify relief. We will more carefully scrutinize an order denying relief than one which permits a trial on the merits." (Rogalski v. Nabers Cadillac (1992) 11 Cal.App.4th 816, 819–820.) This policy favors setting the default aside.

Accordingly, the motion is GRANTED.

Superior Court of California

County of Los Angeles

Department 732

WESTLAKE SERVICES, LLC,

Plaintiff

v.

ALEJANDRO CHAVEZ., et al.,

Defendants.

Case No.: 26STCV17336

Hearing Date: September 18, 2026

[TENTATIVE] RULING RE:

Defendant Alejandro Chavez's Motion to Set Aside Default.

Defendant Alejandro Chavez's Motion to Set Aside Default is GRANTED.

Defendants to give notice.

Dated: September 18, 2026

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Hon. Richard S. Kemalyan

Judge of the Superior Court